

		electronic filing shall not be construed as express consent.” Code Civ. Proc. § 1010.6(c)(3); see CRC 2.251(b)(1). Nothing in the Court’s file establishes that Plaintiff expressly consented to electronic service. Accordingly, the hearing on the demurrers is continued to October 21, 2026, at 10:00 a.m., to allow Defendants to properly serve Plaintiff with the demurrers and notice of the continued hearing.
2.	2023-1311590 CEP America - California vs. Citrus Valley Physicians Group, A Medical Corporation	The unopposed motion of plaintiff CEP America – California dba Vituity for an order sealing court records is granted. [ROA #871.] Plaintiff moves, under Rule 2.550, for an order sealing the unredacted version of the transcript and Exhibit 352. The redactions include references to contracted reimbursement rates for emergency services that Vituity has negotiated with payors. Plaintiff contends these rates constitute “confidential business and proprietary information.” Plaintiff also seeks to protect the Independent Physician Association (IPA) identity as not germane to this action and because disclosure would prejudice the IPA and limit Plaintiff’s ability to contract in the future with other IPAs. [See Kuo Decl. (ROA #468), ¶ 4.] The court may order that a record be filed under seal only if it expressly finds facts that establish that: • there exists an overriding interest that overcomes the right of public access to the record; • the overriding interest supports sealing the record; • a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; • the proposed sealing is narrowly tailored; and • no less restrictive means exist to achieve the overriding interest. (Cal. R. Ct. Rule 2.550(d).) Here, Plaintiff has provided Kuo’s supporting declaration. The court finds this information qualifies for protection as a trade secret, and that the harm that could occur if this information were disclosed to Plaintiff’s competitors and others is clear. Further, Plaintiff complied with the rule by lodging unredacted copies and redacting only the information necessary to protect the trade secret information. Accordingly, the court finds Plaintiff has made the showing necessary for an order allowing Plaintiff to file the unredacted declaration (and accompanying exhibits) under seal. <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.

		Plaintiff shall give notice of the ruling.
3.	2025-1489617 Masaoka vs. ALHV, LLC	The unopposed motion of Plaintiff Mitsuko Masaoka, through her successor in interest, Arther Masaoka, to set aside the dismissal entered on May 27, 2026, is granted. Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Code Civ. Proc. § 473(b) provides for two types of relief. (<i>Leader v. Health Industries of Am., Inc.</i> (2001) 89 Cal. App. 4th 603, 615.) A court may grant discretionary relief upon the moving party’s showing of mistake, inadvertence, surprise or excusable neglect. (<i>Id.</i> at 615-616.) A court must grant mandatory relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect. (<i>Id.</i> at 616.) Arther Masaoka declares that he “cannot remember if I remembered the 5-27-2026 OSC hearing or not and if I attempted to make a virtual appearance on 5-27-2026 as my short term memory and my medications makes [sic] it difficult to remember short-term events.” (Masaoka Decl., ¶ 8.) Plaintiff additionally submitted a declaration from his former conservator, Ruby Hunter, who states that due to her own health issues, she frequently failed to calendar events for Masaoka in this action. (Hunter Decl., ¶¶ 2-3.) Mr. Masaoka also submits a letter from his doctor, O. M. Vesal, M.D., at Irvine Urgent Care. (Ex. B.) This letter states that “Due to the nature of his medical conditions and treatment regimen, he may have difficulty with calendaring obligations, attending scheduled proceedings, and appearing at court hearings at certain times.” (<i>Id.</i>) There is no opposition to this motion. Plaintiff moved promptly, filing it two weeks after the dismissal. Therefore, the Court grants the motion. Mr. Masaoka is reminded that he remains responsible for complying with applicable procedural rules, court orders, and hearing dates. Any future request for relief will be evaluated on its own facts under the applicable legal standards. Self-represented litigants are subject to the same rules as everyone else and are not to be treated any more leniently than represented parties. (See <i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984–985 (“self-representation is not a ground for exceptionally lenient treatment....the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation”); <i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 (self-represented litigants are